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U.S. Department of Homeland Security
U.S. Citizenship and Immigration Services
Marbury Service Center
P.O. Box 84210
Fairhaven, TX 75063

REQUEST FOR EVIDENCE

Receipt Number	MRB2590147823
Notice Date	March 12, 2026
Form	I-129, Petition for a Nonimmigrant Worker, with E Classification Supplement
Classification Sought	E-2 Treaty Investor
Petitioner	Tessera Lane Roasting Company LLC, 418 Kestrel Row, Suite 120, Hollandsworth, NC 27519
Beneficiary	VASCONCELOS, Marta Isilda Duarte (DOB 05/14/1988, Portugal)
Priority / Received Date	November 3, 2025
Response Due Date	June 4, 2026
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ATTORNEY OF RECORD: Priya N. Aldrich, Esq., Renfro & Aldrich Immigration Law PLLC, 2200 Corbin Gate Parkway, Suite 705, Hollandsworth, NC 27518 (Form G-28 on file)

I. NOTICE

The above petition has been received and reviewed. The evidence submitted is not sufficient for U.S. Citizenship and Immigration Services (USCIS) to determine eligibility for the classification sought. Before a decision can be made, you must submit the additional evidence described in Section III of this notice.

This notice lists the evidence that is missing or insufficient. It is not a complete list of every document you may submit. You remain responsible for establishing eligibility by a preponderance of the evidence.

II. SUMMARY OF THE RECORD

The petition seeks to classify the beneficiary as a treaty investor under section 101(a)(15)(E)(ii) of the Immigration and Nationality Act. The record indicates that the beneficiary is a national of Portugal, a country with which the United States maintains a qualifying treaty of commerce and navigation; that the beneficiary formed Tessera Lane Roasting Company LLC, a North Carolina limited liability company engaged in coffee roasting and retail café operations; and that funds were transferred from an account held at Banco Atlantico do

Norte, S.A., Lisbon, Portugal, to an account at Piedmont Union Bank & Trust, Hollandsworth, North Carolina.

The following documents were received with the petition and have been considered:

- Business plan of Tessera Lane Roasting Company LLC (excerpted), undated cover, financial projections dated September 2025
- Schedule of capital contributions and international wire transfer summary
- Articles of Organization, Operating Agreement extract, membership interest ledger, and related corporate records
- Commercial Lease Agreement for 418 Kestrel Row, Suite 120, Hollandsworth, NC
- Expenditure schedule with vendor invoice summaries
- Declaration of Marta Isilda Duarte Vasconcelos regarding managerial role and operations

The deficiencies identified below remain after review of these documents.

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III. EVIDENCE REQUESTED

ITEM 1 — NATIONALITY OF THE TREATY INVESTOR AND OWNERSHIP OF THE ENTERPRISE

Submit evidence establishing that the beneficiary is a national of the treaty country and that nationals of the treaty country own at least 50 percent of the U.S. enterprise. Specifically:

- a. A clear copy of the biographic data page of the beneficiary's Portuguese passport, or an equivalent official identity document, showing name, date of birth, nationality, document number, and validity dates;
- b. The complete ownership record of the petitioning entity, including the membership interest ledger, the operating agreement provision that governs ownership, and the identity and nationality of every person or entity holding an ownership interest;
- c. If any ownership interest is held indirectly or through another entity, a chart tracing ownership to the ultimate individual owners and their nationalities.

Reason: Ownership of the enterprise by treaty-country nationals is a threshold requirement. The record must show the nationality of each owner, not only of the beneficiary.

ITEM 2 — SOURCE, LAWFUL POSSESSION, AND PATH OF THE INVESTED FUNDS

Submit evidence tracing each amount invested from its origin in the beneficiary's lawful possession to the accounts and assets of the U.S. enterprise. For each capital contribution identified in the record, including but not limited to the contribution of USD 186,400 received on or about April 8, 2025 and the contribution of USD 150,000 received on or about May 22, 2025, submit:

- a. Documentary evidence of how the beneficiary acquired the funds — for example, a notarized deed of sale, a contract of sale of a prior business, audited or filed financial statements of the source entity, employment or compensation records, gift or loan instruments, or inheritance documents, as applicable;
- b. Foreign and domestic tax filings, or an official statement of no filing obligation,

corresponding to the years in which the funds were earned or realized;

- c. Bank statements from the originating foreign account covering at least the six months preceding each transfer, showing the funds accumulating in and departing from that account;
- d. The corresponding U.S. receiving-account statements showing the deposits;
- e. If any portion of the invested funds is borrowed, the loan agreement and evidence that the loan is secured by the beneficiary's personal assets rather than by the assets of the enterprise.

Reason: A wire confirmation shows movement, not lawful acquisition. The record identifies the origin of one contribution but does not document how the beneficiary came to possess the remaining contributed funds.

ITEM 3 — IRREVOCABLE COMMITMENT OF THE INVESTMENT AND FUNDS AT RISK

Submit evidence that the invested capital is irrevocably committed to the enterprise and subject to partial or total loss if the business fails. Include:

- a. Executed contracts, leases, and purchase agreements creating binding obligations;
- b. Receipts, paid invoices, or cancelled instruments for non-refundable expenditures already made;
- c. Any personal guaranty given by the beneficiary for the obligations of the enterprise;
- d. A statement of any portion of the invested funds that remains uncommitted, together with an explanation of the purpose for which it is held.

Reason: Funds held in an account and available for return to the investor are not at risk.

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ITEM 4 — REAL AND OPERATING COMMERCIAL ENTERPRISE

Submit evidence that the enterprise is a real, active, and operating commercial undertaking producing goods or services for profit, and not a paper organization or a speculative or idle investment. Include:

- a. Evidence of the physical premises from which the enterprise operates;
- b. Federal and state registration of the enterprise, including the employer identification number and any operating licenses or permits required for the activity;
- c. Evidence of ongoing commercial activity, such as supplier or vendor relationships, installed equipment, inventory, and staffing.

Reason: The enterprise must be operating or actively in the process of opening for business, and its activity must be verifiable from the record.

ITEM 5 — THE INVESTMENT IS MORE THAN MARGINAL

Submit evidence that the enterprise has the present or future capacity to generate more than a minimal living for the beneficiary and her family. Include:

- a. Financial projections covering at least five years from the date the enterprise commenced or will commence operations, with the assumptions on which each revenue line is based stated

expressly;

- b. Objective support for those projections, such as executed customer, wholesale, or distribution agreements; signed letters of intent from named counterparties; industry or market data attributed to an identified source; or a comparable-business analysis;
- c. A hiring schedule identifying positions, start dates, and wages;
- d. If the enterprise is already operating, evidence of actual results to date, such as monthly profit-and-loss statements, point-of-sale summaries, or bank statements for the operating account.

***Reason:** Projections that are not tied to identified supporting evidence carry little weight. The business plan in the record refers to supporting agreements as an attachment, but no such attachment was received.

ITEM 6 — THE BENEFICIARY WILL DEVELOP AND DIRECT THE ENTERPRISE

Submit evidence that the beneficiary controls the enterprise and will direct its operations.

Include:

- a. The provisions of the governing documents that confer management authority;
- b. Evidence of the beneficiary's operational control, such as bank signature authority, hiring authority, and authority to bind the enterprise by contract;
- c. A description of the beneficiary's day-to-day duties in the enterprise.

***Reason:** Ownership alone does not establish that the investor develops and directs the enterprise.

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ITEM 7 — EMPLOYMENT TAX FILINGS OF THE ENTERPRISE

Submit copies of the enterprise's filed federal and state employment tax returns for the two most recent completed calendar quarters, specifically:

- a. IRS Form 941, Employer's Quarterly Federal Tax Return, as filed, with proof of transmission or payment;
- b. The North Carolina quarterly tax and wage report (Form NCUI 101) as filed, listing each employee and reported wages;
- c. If the enterprise had no employees during either quarter, a statement to that effect signed by the beneficiary.

***Reason:** Filed wage reports corroborate claimed employment independently of the petitioner's own statements.

ITEM 8 — NONIMMIGRANT INTENT

Submit evidence that the beneficiary will depart the United States upon termination of E-2 status. Include:

- a. A signed statement from the beneficiary expressing an unequivocal intention to depart when E-2 status ends, and describing the circumstances she would return to;

- b. Any corroborating evidence of ties abroad or of arrangements contingent on departure, such as retained residence, ongoing foreign business interests, or family circumstances.

Reason: An intent to depart is required notwithstanding that E-2 status may be extended indefinitely.

IV. INSTRUCTIONS FOR RESPONDING

1. Place this notice, or a copy of it, on top of your response. Responses received without this notice may be delayed or rejected.
2. Submit all requested evidence together in a single response. Piecemeal submissions will not be accepted, and a decision may be made on the record as it then stands.
3. Foreign-language documents must be accompanied by a full English translation and a certification from the translator attesting to competence and to the completeness and accuracy of the translation.
4. Photocopies of original documents are acceptable unless USCIS requests the original. Do not send originals unless specifically requested.
5. If the requested evidence does not exist or cannot be obtained, explain in writing why it is unavailable and submit the best secondary evidence available.

Deadline. Your response must be received at the address below on or before June 4, 2026. This deadline cannot be extended. If a complete response is not received by that date, the petition may be denied, denied in part, or decided on the record as it stands.

Mail your response to:
USCIS Marbury Service Center
Attn: RFE Response — E-2
P.O. Box 84210
Fairhaven, TX 75063

This notice does not constitute a decision on the petition and does not confer any immigration status or benefit.

Officer ID: MRB-4127